

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ruby Kim	Team: Team # 5	CCRB Case #: 200412003	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Wednesday, 12/01/2004 2:50 PM	Location of Incident: Freeman Street & Chisholm Street.	18 Mo. SOL 6/1/2006	Precinct: 42
Date/Time CV Reported Wed, 12/01/2004 8:30 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 12/02/2004 8:05 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Dennis Friendly	08721	930185	042 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Nam [§]
1. SGT Scott Anders	01083	915044	042 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Dennis Friendly	Abuse: Officer Dennis Friendly frisked and searched ^{§ 87(2)(b)} and ^{§ 87(2)(b)}	A . Complainant Uncooperative
B . POM Dennis Friendly	Off. Language: Officer Dennis Friendly made remarks to ^{§ 87(2)(b)} and ^{§ 87(2)(b)} based upon ethnicity.	B . Complainant Uncooperative
C . POM Dennis Friendly	Force: Officer Dennis Friendly pointed his gun at ^{§ 87(2)(b)}	C . Complainant Uncooperative

Synopsis

On December 1, 2004 at 8:30 p.m., Sergeant Scott Anders of the 42nd PCT called the IAB to file a complaint on behalf of § 87(2)(b). Sgt. Anders also called the CCRB the next day and filed a complaint via the call processing system. On December 1, 2004, at about 2:50 p.m., § 87(2)(b) and his friend, § 87(2)(b) were attempting to fix the emergency brakes on § 87(2)(b)'s car, when PO Dennis Friendly issued them two summonses for § 87(2)(b) and § 87(2)(b). According to § 87(2)(b)'s statement, § 87(2)(b) had been experiencing difficulty with his emergency brakes for quite some time. The two men, who work together, decided to check on the brakes once work ended. § 87(2)(b) got in the driver's seat and § 87(2)(b) in the passenger seat. They pulled up about five to ten feet away from their place of work between Freeman and Chisholm Streets in the Bronx. § 87(2)(b) put on the emergency brakes and the car started spinning out of control. It was then that a police vehicle turned the corner and drove towards § 87(2)(b)'s car.

§ 87(2)(b) placed his vehicle in park when he saw the police vehicle approaching. Although there were three officers in the police vehicle, only the driver, PO Friendly, exited the vehicle and approached the two men. With his gun drawn, PO Friendly walked straight to the window of the passenger seat and pointed his gun at § 87(2)(b)'s head. PO Friendly ordered the two men to, "Put your hands up" and "Get out of the car." When § 87(2)(b) opened the car door to step out, PO Friendly grabbed him and placed him against the car. PO Friendly searched § 87(2)(b) and § 87(2)(b) he took their belongings out of their pockets, threw them on top of the car, and took their license and registration out of their wallets. PO Friendly returned to his vehicle and issued § 87(2)(b) two summonses. § 87(2)(b) stated that while the first summons was issued for § 87(2)(b), the second summons did not specify what it was for. Since § 87(2)(b) could not speak or read English very well, he asked PO Friendly why he had been issued the second summons. When § 87(2)(b) asked why he had been issued the second summons, PO Friendly allegedly told § 87(2)(b) and § 87(2)(b) that they were "trying to act stupid" and that "you Arabs should go back to your country." PO Friendly later explained that the second summons was for a box cutter that § 87(2)(b) had in his possession at the time of incident. PO2 and PO3 did not interact with § 87(2)(b) and § 87(2)(b). § 87(2)(b) filed a civilian complaint report with Sgt. Anders at the 42nd Precinct later that day.

§ 87(2)(b) provided the above statement in his initial phone conversation with Investigator Kim on December 8, 2004. § 87(2)(b) stated that the officers taking his complaint at the precinct gave him the name and badge number of PO Dennis Friendly based on the information noted on the summonses. § 87(2)(b) described PO Friendly as a tall dark skinned black male. Although neither he nor § 87(2)(b) interacted with the two officers who had accompanied PO Friendly, § 87(2)(b) was able to describe PO2 as a short white male with a bald head and glasses and PO3 as a white male, about 5'9-5'10 tall and 220 lbs. This case was returned from the Mediation Unit on December 14, 2004. It was determined that the case was unsuitable for mediation because the allegation that PO Friendly pointed his gun at § 87(2)(b) was incorrectly pled as "gun drawn." A missed appointment letter was sent to § 87(2)(b)'s home on January 7, 2005, after he failed to appear for his [first] scheduled interview at the CCRB on that date without first calling to reschedule or cancel. The final please call letter was sent on January 24, 2005, after Inv. Kim failed to reach § 87(2)(b) via telephone. § 87(2)(b) called Inv. Kim on February 3rd and an interview was scheduled for the next day. However, § 87(2)(b) missed his second scheduled interview on February 4, 2005 and a final attempt to contact § 87(2)(b) was made on February 15th; there was no answer and Inv. Kim was unable to leave a message. As for § 87(2)(b) he could not be reached due to the fact that an incorrect address and no phone number were provided.

It should be noted that PO Friendly provided a statement with the CCRB on January 11, 2005. PO Friendly stated that he and Sgt. Scott Anders stopped § 87(2)(b) and § 87(2)(b) for doing a "spin-out" in the middle of Freeman and Chisholm Streets. A frisk and search of § 87(2)(b) and § 87(2)(b) were conducted due to the suspicion that they were driving a stolen vehicle. PO Friendly frisked and searched § 87(2)(b) while Sgt. Anders frisked § 87(2)(b). PO Friendly recovered a gravity knife from § 87(2)(b)'s pocket and issued him a summons for illegal possession of a [gravity] knife. § 87(2)(b) was issued a summons for reckless driving. PO Friendly denied ever drawing or pointing his gun at any point during his encounter with § 87(2)(b) and § 87(2)(b). He also denied making any comments regarding

the ethnicity of both men. Notably, the IAB log notes that Sgt. Anders stated that “while conducting a lawful car stop, S/O [PO Friendly] drew his gun because he saw a knife in the car.” § 87(2)(g)

[REDACTED]

[REDACTED]

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: